

Madhyanchal Vidyut Vitran Nigam Limited v. Permanent Lok Adalat

High Court of Judicature at Allahabad · Single Judge · 14 October 2019 · WRIT - C No. 28207 of 2019 · **Writ petition dismissed; Permanent Lok Adalat award left undisturbed.**

HEADNOTE

A distribution licensee's writ against a Permanent Lok Adalat award directing computation of an electricity bill was dismissed. An oral plea that the Adalat had skipped conciliation before deciding the claim was not pleaded in the petition and was not entertained. Counsel also failed to show that the billing directions violated any provision or procedure of the U.P. Electricity Supply Code, 2005. The Court found no ground to interfere.

FACTUAL SUMMARY

Madhyanchal Vidyut Vitran Nigam Limited, a distribution licensee, filed a writ petition impugning an award of the Permanent Lok Adalat that had issued directions for computation of an electricity bill. After two dates on which none appeared for the petitioner, counsel at the hearing orally submitted that the Permanent Lok Adalat had not undertaken any conciliation process before deciding the claim on merits, and that the award's billing directions fell foul of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.9(c)

bill computation in Permanent Lok Adalat award

HOLDING

A writ against a Permanent Lok Adalat award directing computation of an electricity bill will not be entertained where the licensee neither pleaded that conciliation was skipped nor established that the award's billing directions violate any statutory provision or procedure under the U.P. Electricity Supply Code, 2005.

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PRINCIPLE TAGS

bill-computation-in-permanent-lok-adalat-award A distribution licensee's writ against a Permanent Lok Adalat award directing computation of an electricity bill was dismissed. An oral plea that the Adalat had skipped conciliation before deciding the claim was not pleaded in the petition and was not entertained.. ¶ 1